

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-030
Amendments to Title 6 of the Chickasaw Nation Code
(Technical Corrections)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for children, and

WHEREAS, the Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 6, Chapter 2, Section 6-203.3 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 6-203.3 **SHOW CAUSE HEARING.**

Within seven (7) days of the Child being taken into emergency custody, the Court shall conduct a Show Cause Hearing. At the hearing, the Court shall:

* * *

2. Advise the Parent(s), Guardian(s), or Traditional Custodian(s) of the following:

a. ~~The right to jury trial in an Adjudication Hearing when termination of parental rights is stated as a possible disposition in the petition in cases involving an alleged Deprived Child;~~

ba. The right to be represented by an attorney at every stage of the proceeding, including the right to Court-appointed counsel upon a finding of indigency, in proceedings wherein termination of the parent-child legal relationship is stated as a possible remedy in the petition;

eb. The right to see, hear, and cross-examine all witnesses against them; and

~~dc.~~ The right to call witnesses on their own behalf and to have Court process compel the attendance of said witnesses.

* * *

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 6, Chapter 2, Section 6-204.21 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 6-204.21

DIVERSION BY CONSENT DECREE.

A. After the filing of a petition, but prior to an order sustaining the petition, any Deprived case may be diverted from the adjudication process upon agreement of the Prosecutor, the Department, the respondents and the Court by obtaining a Consent Decree if:

1. the Court has informed the Child and his Parent(s), Guardian(s), or Traditional Custodian(s) of and believes that they understand their rights to:

a. deny the allegations of the petition and require the Chickasaw Nation to prove each allegation by admissible evidence;

b. confront and cross-examine the witnesses against them and to call witnesses on their own behalf; ~~and~~

c. ~~a trial by a jury of six persons at the adjudication stage, where a jury trial is available; and~~

~~dc.~~ be represented by counsel at their own expense at each stage of the proceedings, or to have counsel appointed for them if they cannot afford private counsel.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 6, Chapter 3, Section 6-305.3 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 6-305.3

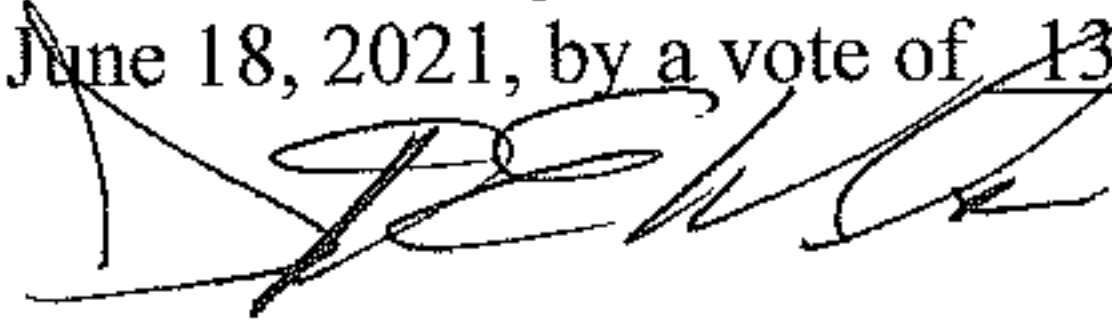
DETENTION PRIOR TO INITIAL APPEARANCE HEARING.

* * *

E. The duration of a Detention under this Section shall not exceed ~~forty-eight (48)~~ **seventy-two (72)** hours, exclusive of Saturdays, Sundays, and legal holidays.

* * *

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on June 18, 2021, by a vote of 13 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: JUN 18 2021

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Explanation

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This resolution amends two sections in Title 6 so that they are consistent with the previous resolutions, PR 31-03, and provides for a longer period of detention prior to the initial appearance.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature